Reply to Commercial queries

Sl.	TQ No.	Reference Document	Clause / Section	Query Topic	Query / Clarification Required	Remarks / Suggestion	Proposed Reply
CATEGORY A — BID SUBMISSION, COMMERCIAL & IFB TERMS							
1	**TQ-A01**	IFB / Tender Notice	IFB Cl. h) Bid Security (EMD)	**Bid Security – Acceptability of SFMS BG from Indian Branch of Foreign Bank**	IFB Cl. h) requires bid security of INR 3,89,37,500 / USD 4,13,000 submitted as SFMS BG or Insurance Surety Bond. Queries: • Is a SFMS BG issued by an Indian branch of a foreign scheduled bank (e.g., Standard Chartered India, HSBC India, Citibank India) acceptable? • Please provide ONGC's bank account details (Bank name, A/c No., IFSC) for NEFT/RTGS	Kindly confirm eligible modes and bank details to avoid last-minute submission issues. For foreign bidders, confirm if USD payment via SWIFT transfer is accepted.	Please refer Para 17.1 of Part-I ITB of Tender document, wherein all details are clearly mentioned. ONGC Bank Account details are already provided in Appendix B-7.

					electronic submission of bid security. • Is an e-BG (electronically issued BG via the issuing bank's portal, not SFMS) acceptable in lieu of SFMS BG?		
2	**TQ-A02**	IFB / Tender Notice	IFB Cl. i) & j) Bid Bond & Bid Validity	**Bid Bond Validity (165 days) vs. Bid Validity (120 days) – Reconciliation**	IFB Cl. i) requires Bid Bond validity of 165 days from opening of Unpriced bid, while Cl. j) requires Bid Validity of 120 days. Queries: • Please confirm that the 165-day Bid Bond validity is intentionally longer than the 120-day Bid Validity to cover ONGC's evaluation period. • In the event ONGC requires	Suggest ONGC confirm standard process for bid validity extension requests.	The bid bond is required to be kept valid for 45 days beyond bid validity/extended bid validity. ONGC aims to decide the tenders within original bid validity on a best effort basis. However, if a need arises for extension of Bid Validity beyond 120 days, Bidders will be asked to extend both their Bid and

					an extension of Bid Validity beyond 120 days, will Bidders be asked to extend both their Bid and their Bid Bond commensurately? • Will ONGC notify bidders of any Bid Validity extension well in advance (e.g., 14 days before expiry) to allow time for bank coordination?		their Bid Bond, with an endeavour to place the extension request to bidders well in advance.
3	**TQ-A03**	IFB / Tender Notice	IFB Cl. l) Performance Guarantee	**Performance Security – Phased Submission & Bank Eligibility**	IFB Cl. l) prescribes two performance securities: (1) LSTK part – 10% of Contract Value, valid up to scheduled /extended completion + 90/120 days; (2) Warranty – 5% of	Suggest allowing Warranty PG submission within 30 days of LSTK completion to avoid tying up capital unnecessarily.	Please refer Para 28.1 of Part I ITB of Tender document and Appendix B-3 of Vol I_ Part III Appendices. All the information / details are provided therein.

					Contract Value, valid up to warranty expiry + 90/120 days. Queries: • Can both performance securities be submitted simultaneously at award, or is the 5% warranty security required to be submitted only after LSTK completion? • Is the performance security required as a bank guarantee only, or is an Insurance Surety Bond or Parent Company Guarantee acceptable? • Are Indian branches of foreign banks acceptable for issuing the Performance Bank		

					Guarantee ?		
4	**TQ-A04**	IFB / Tender Notice	IFB Cl. p) Purchase Preference	**Purchase Preference – MSE / Class-I/II Local Supplier Applicability**	IFB Cl. p) refers to ITB Clause 23.6.2(b) for the purchase preference policy. Queries: • Is the Public Procurement Policy for MSEs (Micro & Small Enterprises) applicable to this LSTK offshore contract? • Is the 'Make in India' Order for Class-I / Class-II Local Supplier preference applicable? If so, what is the minimum local content threshold? • For foreign bidders with Indian sub-contractors, will the local content of sub-contracted works be considered for purchase preference calculation?	Recommend ONGC confirm applicability of all purchase preference policies for offshore LSTK works in the pre-bid addendum.	Please refer Para 11.1.7 of Part I ITB of Tender document wherein it is clearly mentioned that no benefits like EMD exemption /purchase preference would be available to MSE bidders even though they possess valid Udyam Registration Certificate, as the PPP-MSE policy is not applicable for the subject tender, being LSTK Project Works. Regarding PP-MII, please refer Para 23.6.2(b) of Part I ITB of Tender document.

5	**TQ-A05**	IFB / ITB	IFB Cl. 8.3 / ITB Two-Bid System	**Two-Bid Submission – Unpriced Bid Content Requirements & A-3 Price Schedule**	The tender follows a Two-Bid System with Unpriced Techno-Commercial Bid (Fee/PreQual/ Technical Cover) and Priced Bid (Finance Cover). Queries: • The Bidders Response Sheet (Part V-A BRS) requires selection of options to confirm items are quoted in Price Bid. Please clarify whether all items in Price Schedule A-3 must be quoted as lump sum or if unit rates with quantities are also required. • In the Unpriced Techno-Commercial Bid, should the bidder include the completed A-3 Price Schedule with prices blanked out, or only the BRS (Part V-A)? • If a bidder intends to sub-contract any portion of work (e.g., detailed engineering, marine spread), is a back-to-back sub-contract letter or LOI required in the Techno-Commercial Bid?	Suggest ONGC issue a clear bid preparation checklist as part of a pre-bid addendum.	The manner in which prices are quoted (lumpsum or unit rates) is explicit in price format. In the Unpriced Techno-Commercial Bid, bidder should include only the BRS (Part V-A) with confirmation of "Quoted" or "Not Quoted" against each items or Taxes/Duties etc.

6	**TQ-A06**	IFB / ITB	IFB Cl. 7.1 Pre-Bid Conference	**Pre-Bid Conference – MS Teams Link & Protocol for Follow-Up Queries**	The Pre-Bid Conference is scheduled for 08.04.2026 at 1100 Hrs IST, both in-person at ONGC CLG-CPD, 15th Floor, Maker Tower E, Mumbai, and via MS Teams. Queries: • Please share the MS Teams meeting link, Meeting ID, and Passcode for virtual attendance. • For foreign bidders / bidders outside Mumbai attending via Teams, will the session be recorded and minutes circulated? • IFB states no queries outside GCC/standard provisions. Can bidders raise queries on SCC clauses, including Change Order methodology and LD provisions, at the pre-bid?	Kindly confirm recording availability and circulation of pre-bid minutes via e-procurement portal.	Pre-Bid Conference is being held in physical mode only. Bidder cannot raise queries other than what is permissible as per IFB. Bidders can raise queries on SCC clauses. No recording of pre-bid conference proceeding. The written response to pre-bid queries will be uploaded in GePNIC portal.
7	**TQ-H01**	SCC Cl. 10.0 TBP / IFB	SCC Cl. 10.0 Works Contract – Offshore	**GST Applicability – Offshore Works Beyond 12 Nautical Miles**	SCC Cl. 10.0 states: 'The proposed jobs are Works Contracts relating to immovable property offshore (beyond 12 nautical miles).' Queries: • Please confirm the GST applicability position for this contract: are offshore works	Tax structure confirmation is critical for pricing and bid submission. Recommend ONGC issue a formal Tax Clarification Note as part of the bid addendum.	*For works beyond 12 nautical miles, contractor may use offshore GSTIN for invoicing purpose. GST will be applicable as per prevailing tax statute of GST and rules thereof.*

					beyond 12 NM outside the territorial waters of India and therefore outside the GST ambit? • If GST is applicable (IGST), what HSN/SAC code is expected to be applied? • For foreign Contractor's services/supply, is the contract subject to Indian Income Tax TDS deductions (Section 194C/194J/195 of Income Tax Act)? • Are import duties applicable on structural steel or equipment imported for this project? If so, will ONGC provide a customs duty exemption certificate?		*HSN/SAC code will be as per nature/type of service.* *Payments to foreign contractors are subject to Income Tax Act, 1961, as applicable.* *Kindly refer GCC clause no. 8.4 CUSTOMS DUTY (BCD + IGST)*
8	**TQ-H03**	SCC / GCC	SCC Cl. 1.2 SCC vs GCC Conflict	**SCC vs. GCC Conflict Resolution – Priority & Key Deviations from GCC**	SCC Cl. 1.2 states: 'In case of conflict / discrepancy / ambiguity between SCC and GCC, clauses of SCC will override those of GCC.' Queries: • Can ONGC list the principal areas where SCC deviates from or overrides GCC, for transparency and bidder awareness? • In case of conflict between Technical Specifications (TBP) and	Suggest ONGC issue a Document Hierarchy and Conflict Resolution matrix as part of the bid package	Generally ONGC strives to not have any discrepancy related to any portion of tender document. However, in case there is conflict / discrepancy / ambiguity between SCC and GCC, clauses of SCC will override those of GCC as per Clause no. 1.2 of SCC. Further, order of priority is

					SCC, which document takes precedence? • The document hierarchy stated in SCC is: SCC > GCC > Technical Specifications > SOW. Please confirm if this is correct. • Are any GCC clauses related to Force Majeure, Dispute Resolution, or Governing Law modified by the SCC?		mentioned at APPENDIX B-4 PROFORMA FOR FORM OF AGREEMENT.

Sl. No.	Referred Clause/Section/Page No. in Bid Document	Query from Bidder.	Proposed Reply
1C	Vol-I-II GCC 6.6 Limitation of Liability	Bidder proposes to revise the limitation of liability to 15% of the total Contract Price (instead of 50% of the annualized Contract Price).	No change, being a part of General Conditions of Contract.

Sl. No.	Referred Clause/Section/Page No. in Bid Document	Clause Particulars	Query from Bidder	Proposed Reply
1C	Invitation To Bid – Tender Notice_1, Tender Details: Point No. 1.0 f)	Closing date and Time for Submission of bids (both unpriced techno-contractual and priced bid) by bidders to ONGC 06.05.2026 at 1500 Hrs. IST	Bidders request Company for grant an extension of **6 weeks** from the Bid submission date, to enable bidder to compile and submit a clear, comprehensive and competitive Techno-commercial bid.	The bid submission date extension is premature at PBC stage.